NewsBank inc.

California lawmakers send social media privacy, transparency bills to Newsom

August 31, 2022 | Center Square California, The (CA)
Author: Madison Hirneisen | Section: California | 719 Words
OpenURL Link

(The Center Square) – California lawmakers have sent two measures to Gov. Gavin Newsom's desk that aim to enhance privacy protections for minors online and increase transparency around how social media companies moderate content like hate speech and extremism.

Lawmakers in the Assembly voted to pass AB 2273 and AB 587, shortly after senators passed the measures. The bills are included in a stack of hundreds of bills advanced to Newsom's desk in the final week of the legislative session.

Assembly Bill 2273 would create the California Age Appropriate Design Code, requiring businesses that provide an online service "likely to be accessed" by minors "should consider the best interests of children when designing, developing, and providing that online service, product or feature."

Online platforms likely to be used by children would be required to provide privacy information in language kids can understand and make the highest level of privacy the default for kids. Additionally, the bill prevents online platforms from selling or sharing a child's precise geolocation without notification and using a child's personal information in a way that is detrimental to their mental or physical health.

Businesses that violate the provisions of the Act could be held liable for $2,500 per child for each "negligent violation" and up to $7,500 per child for each "intentional violation." The bill would take effect July 1, 2024.

"Should this bill become law, California will lead the way in making the digital world safer for American children and take a major step towards creating a global standard for the protection of youth online," Assemblymember Buffy Wicks, D-Oakland, said ahead of a vote in the Assembly on Tuesday.

Wicks co-authored the bill alongside Assemblymember Jordan Cunningham, R-San Luis Obispo. The two had jointly authored another proposal that would have allowed prosecutors to sue social media companies for addicting children, though that bill failed to pass earlier this month.

A coalition of industry groups were in opposition of AB 2273 over language used in the bill. The coalition, which included the Entertainment Software Association, wrote a letter to lawmakers that the bill's specification of "likely to be accessed by a child" is an overly broad standard that would "capture far more websites and platforms than necessary and subject them to this bill's requirements."

The bill received broad support from a range of organizations and individuals, including the American Academy of Pediatrics, Attorney General Rob Bonta and Tim Kendall, the former director of monetization at Facebook.

"By taking some very basic steps – like restricting the collection of kids' data, requiring high privacy settings by default, and providing young people clear resources to report abusive users or block unpleasant content – the State of California can protect the health and wellbeing of millions of young people in our state," Kendall wrote in a support statement.

Lawmakers also advanced a separate measure Tuesday, AB 587, would require social media platforms to increase transparency with their terms of service.

The bill's author, Assemblymember Jesse Gabriel, D-Encino, told lawmakers that the legislation would result in greater transparency about how social media companies moderate public discourse online.

"As we all know, these companies are not transparent, and this would require them to come clean about how they are policing and enforcing public discourse around hate speech, disinformation and extremism," Gabriel said ahead of a vote in the Assembly on Tuesday.

Gabriel noted that the bill does not enforce a certain content moderation policy, but requires social media companies to be transparent about how they are moderating content.

The bill was opposed by the California Chamber of Commerce, the Chamber of Progress and a coalition of tech groups, who argued the bill would result in the disclosure of the systems social media companies use to detect content in need of moderation.

"Forcing social media companies to share their sensitive, detailed content moderation policies and strategies is like handing a blueprint of your house to the burglars," Chamber of Progress CEO Adam Kovacevich said in a statement Tuesday. "It's important we fight back against misinformation and hate groups online, but forcing digital platforms to expose their detailed playbook gives child predators and international trolls the information they need to evade detection."

Both bills are among the hundreds of measures passed in the final days of the legislative session that are headed to Newsom's desk. The governor will have until Sept. 30 to sign or veto the bills.

© Copyright 2022 Franklin News Foundation All Rights Reserved.

- **Citation (apa Style)**
  Hirneisen, M. (2022, August 31). California lawmakers send social media privacy, transparency bills to Newsom*Center Square California, The (CA)*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/18C4267E36D041D0.